BETTY DUBE

And

KEENLORD DUBE

Versus

WACKDRIVE PROPERTIES (PVT) LTD

And

FREDDY KAPUYA

SHERIFF OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
M DUBE J
BULAWAYO, 23 MAY & 30 SEPTEMBER 2025

T. Kamwemba, for the applicants
E. Samuva, for the 1st and 2nd respondents

Opposed Application

DUBE J: "*Nullus commodum capere potest de injuria sua propria*- no one can derive an advantage from his own wrong"

In this matter the 1st and 2nd respondents have thrown all manner of ruse to avoid paying money that was advanced to them pursuant to a purchase of two residential stands. It is a sad trend in our jurisdiction that courts are inundated with disputes emanating from business contracts that had been executed with purely deceitful intents on the part of recipients of cash. Purchase of landed property has become a dicey enterprise as a result. The facts of this matter lay bare such societal fabric.

Brief facts

The applicants herein a married couple, entered into a contract to purchase two residential stands from the 1st respondent. They paid a sum of USD27 000.00. It turned out that the said properties had already been sold to a third party. From the outset it would seem the 2nd respondent being the alter ego of the 1st respondent never had intentions to deliver on his part of the transaction. His intentions were purely to reap where he did not sow.

The applicants instituted summons for the recovery of US$27 200. 00 owed to them by the respondents and judgment was granted in their favour. The applicants approached the 3rd respondent to execute their judgment against the 1st respondent a company with limited liability but it did not own anything of meaningful value. Consequently, the applicants approached this court under case number HC 2929/18 seeking permission to pierce the corporate veil and reach out the 2nd respondent being the alter ego of the 1st respondent. The application was duly granted by this court. The 1st and 2nd applicants proceeded to engage the 3rd respondent in order to execute their judgment against the 1st and 2nd respondents. The 1st and 2nd respondents promptly filed an application for rescission of judgment filed under case HC 2936/20 and also an urgent chamber application for stay of execution pending rescission of judgment filed under case HCBC 2135/20. A provisional order was granted by consent and that provisional order staying execution remains extant. The 1st and 2nd respondents then successfully negotiated an out of court settlement seeking terms to liquidate the judgment debt. The applicants weary of litigation duly agreed. A deed of settlement was executed by the parties duly assisted by their legal practitioners. The settlement was couched as follows:

> "1. The 1st and 2nd applicants are ordered to pay jointly and severally to the respondents the sum of US$27 200.00 (Twenty Seven Thousand and Two Hundred United States Dollars) with costs on and attorney and client scale which shall be paid as follows:
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> i. The 1st payment in the sum of US$10 000.00 (Ten Thousand United States Dollars) to be paid on or before the 7th May 2021.
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> ii. The 2nd payment of USD10 000.00 (Ten Thousand United States Dollars) to be paid on or before 7th June 2021.
>
> iii. The remaining balance of USD7 200.00 (seven thousand two hundred United States dollars) shall be paid on or before 7th July 2021.

2. The applicants are to withdraw application filed under case no. HCBC 2135/20 with no order as to costs.

3. The 1st and 2nd respondents shall upon signing of this deed of settlement cause the Sheriff of the High Court to suspend execution pending fulfilment of this deed.

4. The whole amount becomes due and enforceable upon default terms of this deed of settlement.

5. Respondents (in this case the applicants) are entitled to costs of suits, which costs shall be taxed after settlement of capital debt."

The 1st and 2nd respondents duly withdrew their application for rescission. However as characteristic of them, they only paid a sum of USD14 000.00 and ignored the balance of USD 13 200.00.According to the applicants, upon being reminded to comply with this deed of settlement the 1st and 2nd respondents made promises, begged for clemency but ultimately failed to make full settlement.

Despite the withdrawal of the rescission application, the provisional order staying execution remained extant. I am convinced the 1st and 2nd respondents left matters at that not by coincidence but rather by design. It thus prevented the applicants from executing judgment in the main to collect the balance.

The applicants now bring an application to register the deed of settlement of the 26th March 2021as an order of this court. The 1st and 2nd applicants are resisting such application. They agree that they entered into a settlement agreement. They unashamedly, through their counsel aver that they breached the agreement. They claim that they committed the breach on the 8th of June 2021. For that reason, they claim that the whole debt fell due on that date. They clearly seek to benefit from their own deceit. They claim that this application is now brought on a new *causa*. They argue that by entering into a deed of settlement the parties compromised the earlier extant judgment of the court in favour of the applicants. They argue that in any event the new compromise agreement ought to have been fulfilled by the 7th of July 2021. For that reason they claim that the debt under the new compromise deed is now prescribed as this application was not brought within 3 years.

The Law

The Prescription Act [*Chapter 8:11*] at section 15(a) (ii) provides as follows:

"15. Periods of prescription of debts
The period of prescription of a debt shall be—
(a) thirty years, in the case of—
(i) A debt secured by mortgage bond;
(ii) A judgment debt;
……
Section 19(1) © provides as follows:

"19. Judicial interruption of prescription
(1) In this section— "process" includes—
(a) A petition;
(b) A notice of motion;
(c) A rule nisi;

I am not persuaded by the 1st and 2nd respondents that applicant's claims have prescribed. Under case number HC 2934/17 an order was granted against the 1st respondent, Wack Drive Properties for the payment of $27 000.00 being sums the applicants paid for two residential stands. That judgment remains extant. It has not been compromised. Neither has it been rescinded. When the 3rd respondent was instructed to execute the said extant order it was discovered that the 1st respondent has no assets of value. This means the amount owing became a judgment debt. In terms of section 15(a)(ii) of the Prescription Act *supra* it has 30 years to prescribe. That remains the position. However, in an attempt to enforce the order, the applicants were forced to make an application to pierce the corporate veil in order to reach the 2nd applicant who is the alter ego of the 1st respondent. By doing so the applicants did not abandon the extant order. They made an application under case number HC 2929/18. The application was successful. This case number only concerned itself with the joining in of 2nd applicant for purposes of enforcement. When execution was attempted against the 2nd Respondent he filed for rescission of judgment HC2136/20. A provisional order was granted staying the execution of the piercing of the corporate veil order. No reference in this order was made to the original extant order HC 2934/17. For that reason, such order remains extant and enforceable. When the parties executed a deed of settlement, they specifically made reference to case number 2929/18. In no way did they compromise the original order. In other words the order that can be said to have been compromised is the piercing of the corporate veil order. The current application does not seek to sue out on a new claim. I agree that it is properly made by way of a chamber application. It seeks a procedural relief as opposed to suing out a new claim for payment under a new cause of action. This application is concerned with only enforcement of an already existing order which is in form of a judgment debt.

It is correct that with an existing provisional order one might understand it to mean that execution of an order under HC 2934/17 is stayed but that is not the case. In any event it is indeed mischievous of the respondents to argue that after committing themselves to withdraw their main application for rescission, there remains a valid provisional order. That order can only be valid pending determination of the rescission application. If there is no rescission application the provisional order can not be valid in perpetuity. If indeed it remains valid then section 19(1) © of the Prescription Act becomes applicable. Prescription can not run when there is a live rule nisi.

Having said that I find all the preliminary points raised by the 1st and 2nd respondents to be without merit. If anything, they are an attempt by the said respondents to hide behind the proverbial finger and continue to benefit from their own deceit.For that reason, I find that the applicants have made a good case for the relief that they seek. I will grant their prayer with necessary amendments.

Disposition

1. The application for registration of the deed of settlement entered into by the parties on the 26th March 2021 be and is hereby granted.
2. For the avoidance of doubt the provisional order under case number HC 2136/20 be and is hereby deemed lapsed and of no effect owing to the withdrawal of the rescission of judgment application under the same case number.
3. The applicants be and are hereby authorised to enforce and execute the deed of settlement against both 1st and 2nd respondents one paying for the other to be absolved, for the recovery of any sums remaining due under the main judgment under case number HC2934/17 and interest thereon at the prescribed rate calculated from the date of the judgment under case number HC2934/17 to the date of full and final settlement.
4. 1st and 2nd respondents to pay costs of suit on an attorney and client scale.

Tavenhave & Machingauta, applicants' legal practitioners
Gundu Dube & Pamacheche, 1st and 2nd respondents' legal practitioners